

Legal Studies 11–12 (2025)

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Legal Studies 11–12 (2025)

Implementation from 2027

The new Legal Studies 11–12 Syllabus (2025) is to be implemented from 2027 and will replace the [Legal Studies Stage 6 Syllabus \(2009\)](#).

2026

- Plan and prepare to teach the new syllabus

2027, Term 1

- Start teaching the new syllabus for Year 11
- Start implementing new Year 11 school-based assessment requirements
- Continue to teach the [Legal Studies Stage 6 Syllabus \(2009\)](#) for Year 12

2027, Term 4

- Start teaching the new syllabus for Year 12
- Start implementing new Year 12 school-based assessment requirements

2028

- First HSC examination for the new syllabus

Overview

Syllabus overview

The *Legal Studies 11–12 Syllabus* aligns with the *Law and the Community Life Skills 11–12 Syllabus* to provide opportunities for integrated delivery.

Through [collaborative curriculum planning](#), it may be decided that [Life Skills outcomes and content](#) are the most appropriate option for some students with intellectual disability.

Organisation of Legal Studies 11–12

The *Legal Studies 11–12 Syllabus* is structured around key legal concepts and structures, the meaning and purpose of justice, and the legal issues that affect individuals, groups and society. In Year 11, students investigate the key processes of Australia's legal system, from its creation to the current system. In Year 12, students examine the foundations of the domestic and international legal systems, the core principles underpinning the criminal justice system and Australia's relationships with other countries. Through the selection of options, students learn about specialist fields in the law, including consumer, family, housing, workplace, and peace, conflict and the law.

Figure 1 shows the organisation of Legal Studies 11–12.

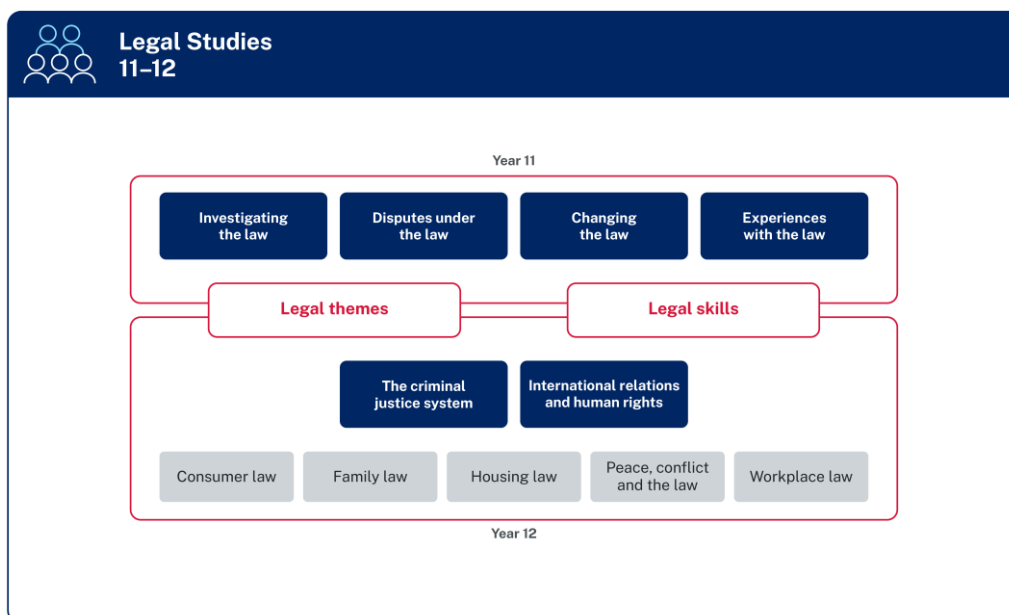


Figure 1: The organisation of Legal Studies 11–12

Image long description: The 4 focus areas for Year 11 are Investigating the law, Disputes under the law, Changing the law and Experiences with the law. The 2 core focus areas for Year 12 are The criminal justice system and International relations and human rights. The 5 options for Year 12 are Consumer law, Family law, Housing law, Peace, conflict and the law, and Workplace law. Legal themes and Legal skills sit in the middle of the diagram, each surrounded by a box.

Protocols for collaborating with Aboriginal and Torres Strait Islander Communities

NESA is committed to working in partnership with Aboriginal Communities and supporting teachers, schools and schooling sectors to improve educational outcomes for young people.

It is important to respect appropriate ways of interacting with Aboriginal Communities and Cultural material when teachers plan, program and implement learning experiences that focus on Aboriginal and Torres Strait Islander Priorities.

Indigenous Cultural and Intellectual Property (ICIP) protocols need to be followed. Aboriginal and Torres Strait Islander Peoples' ICIP protocols include Cultural Knowledges, Cultural Expression and Cultural Property and documentation of Aboriginal and Torres Strait Islander Peoples' identities and lived experiences. It is important to recognise the diversity and complexity of different Cultural groups in NSW, as protocols may differ between local Aboriginal Communities.

Teachers should work in partnership with Elders, parents, Community members, Cultural Knowledge Holders, or a local, regional or state Aboriginal Education Consultative Group. It is important to respect Elders and the roles of men and women. Local Aboriginal Peoples should be invited to share their Cultural Knowledges with students and staff when engaging with Aboriginal histories and Cultural Practices.

Course description

The *Legal Studies 11–12 Syllabus* enables students to develop knowledge and understanding of the domestic and international legal systems and how they have been shaped over time. Students

investigate the key features of the law and understand how the law interacts with aspects of society.

What students learn

Through the study of Legal Studies 11–12, students:

- develop an understanding of the foundations of law, the criminal justice system, and international relations and human rights
- explore the role of the law in society and how laws are made and changed
- develop an understanding of how the law operates in practice
- develop skills in analysis and reasoning to make judgements about the extent to which the law achieves justice for individuals, groups and society
- construct reasoned arguments supported by a range of evidence.

Course structure and requirements

Year 11 course structure and requirements

The Year 11 Legal Studies course comprises a study of:

- 120 indicative hours across 4 focus areas.

Students are required to study all 4 focus areas of the course.

Year 11 focus areas	Indicative hours
Investigating the law	40
Disputes under the law	25
Changing the law	25
Experiences with the law	30

Changing the law

In this focus area, students examine TWO case studies of law reform:

- the recognition of land rights in NSW and native title for Aboriginal and Torres Strait Islander Peoples
- ONE other case study of law reform selected from NSW or the federal level.

Both case studies will draw on the following elements in the process of law reform in NSW and Australia:

- reasons for change
- drivers of change
- processes of change
- outcomes of change.

Case studies must not overlap with or duplicate significantly any content to be attempted in the Year 12 Legal Studies course.

Experiences with the law

In this focus area, students examine TWO case studies of groups that have experience with the law:

- young people
- ONE other group must be selected from:
 - Aboriginal and/or Torres Strait Islander Peoples
 - asylum seekers, refugees or migrants
 - LGBTQIA+ people
 - older people
 - people experiencing climate injustice
 - people experiencing economic disadvantage
 - people experiencing issues of equity, discrimination or power imbalance
 - people living in rural, regional or remote Australia
 - people who are culturally and linguistically diverse
 - people with disability
 - people with a mental health condition.

Both case studies must examine:

- the nature of the group's experience with the law
- ways to access justice
- the responsiveness of the law.

Case studies must not overlap with or duplicate significantly any content to be attempted in the Year 12 Legal Studies course.

Year 12 course structure and requirements

The Year 12 Legal Studies course comprises a study of:

- 120 indicative hours across 3 focus areas
- TWO options.

Year 12 focus areas	Indicative hours
The criminal justice system (core)	30
International relations and human rights (core)	30
Options	60

Options

Students must study TWO options from:

- Consumer law
- Family law
- Housing law
- Peace, conflict and the law
- Workplace law.

Legal themes and skills

The Legal themes and skills offer insight into the nature of the legal system and allow students to engage in the analysis and judgement of the effectiveness of the law in achieving justice. The Legal themes and skills are to be integrated throughout the course.

Case studies and the use of evidence

The *Legal Studies 11–12 Syllabus* embeds the use of case studies throughout course content. The use of a case study allows students to deepen their understanding of legal concepts and apply their knowledge to different situations.

A case study refers to a real-world example that illustrates a course concept, a specific legal matter, a court decision or the use of legislation. Case studies offer opportunities for students to examine the application and impact of the law. They can be used to explore, compare and contextualise legal concepts. The syllabus specifies in which areas case studies are to be used.

Across Years 11 and 12, the selection of case studies must include a range of examples that are:

- recent and significant
- from Aboriginal and/or Torres Strait Islander experiences
- a mixture of Australian and international.

The *Legal Studies 11–12 Syllabus* requires students to incorporate a wide range of evidence to inform their understanding and support their judgements. This evidence includes legislation, cases, media, international instruments, documents, expert opinions and statistics.

Safety and risk management

Schools are required to ensure they follow [safety and risk management](#) in delivering the *Legal Studies 11–12 Syllabus*.

Course enrolment details

Legal Studies Year 11

- Course number: 11220
- Course hours: 120
- Course units: 2
- Enrolment type: Elective
- Endorsement type: Board developed

Exclusions

- Law and the Community Life Skills (Year 11, 2 units): 16675
- Human Society and its Environment Life Skills (Year 11, 2 units): 16699*

* Where Law and the Community Life Skills is undertaken in the course.

Prerequisites

- Nil

Corequisites

- Nil

Legal Studies Year 12

- Course number: 15220
- Course hours: 120
- Course units: 2
- Enrolment type: Elective
- Endorsement type: Board developed

Exclusions

- Law and the Community Life Skills (Year 12, 2 units): 16675
- Human Society and its Environment Life Skills (Year 12, 2 units): 16699*

* Where Law and the Community Life Skills is undertaken in the course.

Prerequisites

- Legal Studies (Year 11, 2 units): 11220

Corequisites

- Nil

HSC information

Information about [curriculum requirements](#) for the HSC are available on [Assessment Certification Examination \(ACE\)](#).

Rationale

Legal Studies examines the fundamental role of the law in society. Students explore the relationship between law, justice and society, the development of law as a reflection of society's values, and the effectiveness of the law in achieving justice for individuals, groups and society.

The syllabus provides students with an understanding of the legal concepts and principles involved in the creation and application of the law in Australia. It also offers students the opportunity to examine the international legal system and Australia's place within it. Students learn about the significance of Aboriginal and Torres Strait Islander Customary Lore and understand its ongoing relevance to the Australian legal system, including Culturally appropriate considerations within the law and their impact on Aboriginal and Torres Strait Islander Peoples.

Legal Studies enables students to understand complex legal issues and how the law aims to protect the rights of individuals, balanced against their obligations and responsibilities. They learn about the ways Australia is influenced by, and responds to, international events, new concepts of justice and developments in technology. Students examine the tensions between changing social values and equitable outcomes, and how these can act as an impetus for legal change and reform.

In Legal Studies, students consider a range of evidence to examine the nature and scope of legal issues, evaluating these against legal criteria and justifying recommendations and viewpoints. This allows students to account for the different perspectives of individuals and groups, and distinguish between fact and opinion.

The knowledge gained in Legal Studies provides students with the confidence to approach and access the legal system and an appreciation of its relevance to their lives. It leads to a wide range of post-school pathways, including in law, education, public service, forensic science and policy. Legal Studies examines the concept of social justice and encourages the development of legally literate citizens, empowering students to help create a just future and a more equitable society.

Aim

Legal Studies 11–12 aims to develop students' knowledge and understanding of legal concepts and structures, the meaning and purpose of justice, and the legal issues that affect individuals, groups and society.

Table of outcomes

Year 11	Year 12
LST-11-01 describes legal principles and judicial processes used in the legal system	LST-12-01 explains legal principles and judicial processes used in the legal system
LST-11-02 explains the key features of Australian and international law	LST-12-02 analyses the key features of Australian and international law and the relationship between them
LST-11-03 explains the role, formation and reform of law	LST-12-03 analyses the role, formation and reform of law
LST-11-04 analyses differing perspectives of individuals, groups and society in influencing the law	LST-12-04 analyses differing perspectives of individuals, groups and society in influencing the law
LST-11-05 explains methods to resolve conflict and encourage cooperation between individuals, groups and nation-states	LST-12-05 assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states
LST-11-06 analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society	LST-12-06 analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society
LST-11-07 uses and analyses a range of sources to assess the effectiveness of the law in addressing issues	LST-12-07 uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues
LST-11-08 uses legal concepts to communicate information and legal reasoning to form a judgement	LST-12-08 uses a range of legal concepts to communicate information and legal reasoning to form a judgement

Outcomes and content for Year 11

Legal themes and skills

Content

Legal themes

- Relationship between law, justice and society
- Development of law as a reflection of society's values
- Effectiveness of legal and [non-legal measures](#) in achieving justice for individuals, groups and society

Analysis and use of sources

- Use and integrate a range of [evidence](#), including [legislation](#), cases, media, international instruments, documents, expert opinions and statistics
- Analyse evidence to identify and account for the different perspectives of individuals and groups in society
- Distinguish between fact and opinion

Interpretation

- Examine the nature of the relationship between law, justice and society
- Analyse the development of law as a reflection of society's values
- Form judgements about the effectiveness of legal and non-legal measures in achieving justice for individuals and society

Investigation and research

- Acknowledge sources appropriately
- Examine legal issues that illustrate how the law operates in practice

Evaluation

- Construct and develop reasoned arguments supported by relevant evidence
- Evaluate the responsiveness of the legal system to changing values, events, the media, outdated laws and developments in technology
- Evaluate the effectiveness of the law using criteria. These include:
 - [accessibility](#) of the law
 - achievement of justice
 - application of the [rule of law](#)
 - capacity to meet society's needs
 - capacity to uphold community standards
 - capacity to uphold the interests of justice
 - enforceability of [legal measures](#)
 - need for law [reform](#)
 - protection of individual rights
 - resource efficiency
 - responsiveness of the law

Investigating the law

Outcomes

A student:

- describes legal principles and judicial processes used in the legal system **LST-11-01**
- explains the key features of Australian and international law **LST-11-02**
- explains the role, formation and reform of law **LST-11-03**
- explains methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-11-05**
- uses and analyses a range of sources to assess the effectiveness of the law in addressing issues **LST-11-07**
- uses legal concepts to communicate information and legal reasoning to form a judgement **LST-11-08**

Related Life Skills outcomes: LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The [Legal themes and skills content](#) is to be integrated as appropriate.

Legal foundations

- The meaning and function of the law
- Characteristics of effective law
- Ways to classify the law, including binding or non-binding, written or unwritten, public or private, criminal or civil, common or statute, and domestic or international
- Principles of justice, including [equality](#), access and [fairness](#)
- The relationship between ethics and the law
- Principles of [procedural fairness](#), including a fair hearing and rules against bias
- The [rule of law](#) and its importance to individuals, groups, government and society
- Consequences of an absence of law or a misuse of law

Aboriginal and Torres Strait Islander Customary Lore

- The significance and [diversity](#) of [Customary Lore](#) for [Aboriginal and Torres Strait Islander Peoples](#)
- The roles of [Elders](#) in maintaining and upholding Customary Lore, including mediation and traditional dispute resolution
- The interconnectedness of [Country](#), Peoples, Cultural Practices and [kinship](#) that underpins Customary Lore
- Responsibilities in caring for Country, including land and water management

Sources of law

- The origin and development of common law in Australia
- Features of the doctrine of [precedent](#) and its application in law
- Statute law and the steps in the legislative process
- The role and types of [delegated legislation](#)

Legal institutions

- The role, [jurisdiction](#) and hierarchy of courts in NSW and Australia
- The purpose of specialist courts, including the Children's Court and the Coroner's Court

- Features of the [adversarial system](#)
- The role and structure of parliament in NSW and Australia
- The relationship between courts and parliament

The constitutional framework

- The creation and function of the Australian Constitution
- The division of powers between federal, state and territory governments
- Reasons for the separation of powers
- The role of the High Court in interpreting the Constitution
- Amending the Constitution through [referendums](#)

The global legal system

- The formation of international law through customary law and instruments
- The principle of [state sovereignty](#) and its impact on international and domestic law
- Responsibilities of [nation-states](#) under international law, including Australia's [obligations](#)
- The purpose of the United Nations and its participation in international law
- The purpose of [intergovernmental organisations](#) in encouraging cooperation among nation-states
- The role of international courts and [tribunals](#) in resolving disputes
- The participation of non-government organisations in international law

Legal rights

- The relationship between the rights and responsibilities of individuals
- Sources of rights derived from the Australian Constitution, statute law, common law and international law
- Domestic and international protection of rights
- Consequences of a breach of rights

Disputes under the law

Outcomes

A student:

- describes legal principles and judicial processes used in the legal system **LST-11-01**
- explains the role, formation and reform of law **LST-11-03**
- explains methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-11-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-11-06**
- uses and analyses a range of sources to assess the effectiveness of the law in addressing issues **LST-11-07**
- uses legal concepts to communicate information and legal reasoning to form a judgement **LST-11-08**

Related Life Skills outcomes: LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The [Legal themes and skills content](#) is to be integrated as appropriate.

Criminal law

- The purpose and characteristics of criminal law
- Elements of a [crime](#), including [actus reus](#), [mens rea](#) and [causation](#)
- Types of crime, including [strict liability](#), [summary](#) and [indictable](#), and crimes against people and property
- The [burden](#) and [standard of proof](#) in criminal law
- Procedures in NSW criminal courts, including legal representation
- The role of legal personnel and the jury in a criminal trial
- Types and aims of punishments
- Key concepts of justice as illustrated through the operation of the law in a criminal case

Civil law

- The purpose and characteristics of [civil law](#)
- Elements of civil law, including breach, causation and [loss](#)
- Types of civil law, including torts and [contracts](#)
- The burden and standard of proof in civil law
- Procedures in NSW [tribunals](#) and civil courts, including alternative methods of resolving disputes
- The role of legal personnel and the jury in a civil trial
- Types and aims of remedies
- Key concepts of justice as illustrated through the operation of the law in a civil case

Disputes with the state

- The purpose and characteristics of administrative law
- Reasons individuals and groups have disputes with the state
- Ways to address disputes through non-government organisations and the media
- Ways to address disputes through government reviews, courts and tribunals
- The role of the Ombudsman in investigating complaints and providing remedies

- The purpose of a royal commission
- The findings and recommendations of royal commissions, including the Royal Commission into Aboriginal Deaths in Custody and the Royal Commission into Misconduct in the Banking, Superannuation and Financial Services Industry
- Key concepts of justice as illustrated through the operation of a dispute between individuals or groups and the state

Changing the law

Outcomes

A student:

- describes legal principles and judicial processes used in the legal system **LST-11-01**
- explains the role, formation and reform of law **LST-11-03**
- analyses differing perspectives of individuals, groups and society in influencing the law **LST-11-04**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-11-06**
- uses and analyses a range of sources to assess the effectiveness of the law in addressing issues **LST-11-07**
- uses legal concepts to communicate information and legal reasoning to form a judgement **LST-11-08**

Related Life Skills outcomes: LAC-LS-02, LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-08, LAC-LS-09, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The [Legal themes and skills content](#) is to be integrated as appropriate.

Students examine TWO case studies of law [reform](#):

- the [recognition](#) of [land rights](#) in NSW and [native title](#) for [Aboriginal and Torres Strait Islander Peoples](#)
- ONE other case study of law reform selected from NSW or the federal level.

Both case studies will draw on the following elements in the process of law reform in NSW and Australia:

Reasons for change

- Recognising changing values
- Maintaining relevance in society
- Adapting to technological change
- Upholding international standards
- Amending existing or outdated laws
- Addressing the needs of individuals, groups or society

Drivers of change

- Ways to influence change, including activism, advocacy, public opinion, investigations, findings and recommendations
- Informal methods of change by individuals, advocacy groups and the media
- Formal methods of change through the legislative process, [judicial](#) decisions, royal commissions, law reform commissions and inquiries

Processes of change

- Legislative methods
- Executive methods
- Judicial methods

Outcomes of change

- Benefits of reform
- Limitations of reform

Case study 1: The recognition of land rights in NSW and native title for Aboriginal and Torres Strait Islander Peoples

- Overview of land rights, including the role and impact of [legislation](#) in NSW
- Overview of native title, including overturning the doctrine of [terra nullius](#) and the relationship to land rights
- Drivers of change to native title
- The process of developing laws through judicial decisions and legislation, including the Mabo and Wik decisions
- Outcomes of change to native title law, including the benefits and limitations

Case study 2: An area of law reform

- Overview of the area of law reform
- Reasons for change to the law
- Drivers of change in the area of law reform
- Processes of change used to address the area of law reform
- Outcomes of the change, including benefits and limitations

Experiences with the law

The [Legal themes and skills content](#) is to be integrated as appropriate.

In this focus area, students examine TWO case studies of groups that have experience with the law, young people and ONE other group that must be selected from:

- Aboriginal and/or Torres Strait Islander Peoples
- asylum seekers, refugees or migrants
- LGBTQIA+ people
- older people
- people experiencing climate injustice
- people experiencing economic disadvantage
- people experiencing issues of equity, discrimination or power imbalance
- people living in rural, regional or remote Australia
- people who are culturally and linguistically diverse
- people with [disability](#)
- people with a mental health condition.

Case study 1: Young people

Outcomes

A student:

- describes legal principles and judicial processes used in the legal system **LST-11-01**
- analyses differing perspectives of individuals, groups and society in influencing the law **LST-11-04**
- explains methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-11-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-11-06**
- uses and analyses a range of sources to assess the effectiveness of the law in addressing issues **LST-11-07**
- uses legal concepts to communicate information and legal reasoning to form a judgement **LST-11-08**

Related Life Skills outcomes: LAC-LS-02, LAC-LS-03, LAC-LS-04, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-09, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

Students examine the ways the legal system interacts with young people and the extent to which justice is achieved.

The nature of the experience

- The need for protection under the law
- Reasons for encountering the legal system
- Issues arising from contact with the law, including [evolving capacity](#), the age of criminal responsibility and [recidivism](#)

Access to justice

- Protection under domestic and international law
- [Authorities](#) that advocate for the rights of young people

- Contact with legal processes, including police and the Children's Court
- Alternative approaches to justice, including [justice reinvestment](#), [diversionary](#) programs and Culturally inclusive processes for [Aboriginal and Torres Strait Islander Peoples](#)
- The role of non-government organisations that represent the interests of young people

Responsiveness of the legal system

- Indicators of success in achieving justice
- Barriers to achieving justice

Case study 2: ONE group in society

Outcomes

A student:

- describes legal principles and judicial processes used in the legal system **LST-11-01**
- analyses differing perspectives of individuals, groups and society in influencing the law **LST-11-04**
- explains methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-11-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-11-06**
- uses and analyses a range of sources to assess the effectiveness of the law in addressing issues **LST-11-07**
- uses legal concepts to communicate information and legal reasoning to form a judgement **LST-11-08**

Related Life Skills outcomes: LAC-LS-02, LAC-LS-03, LAC-LS-04, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-09, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

Students examine the ways the legal system interacts with ONE group in society and the extent to which justice is achieved.

The nature of the experience

- The need for protection under the law
- Reasons for encountering the legal system
- Issues arising from contact with the law

Access to justice

- Protection under domestic and international law
- [Authorities](#) that advocate for the rights of the group
- Contact with legal processes, including law enforcement agencies, courts or [tribunals](#), and dispute resolution methods
- Alternative approaches to justice
- The role of non-government organisations that represent the interests of the group

Responsiveness of the legal system

- Indicators of success in achieving justice
- Barriers to achieving justice

Outcomes and content for Year 12

Legal themes and skills

Content

Legal themes

- Relationship between law, justice and society
- Development of law as a reflection of society's values
- Effectiveness of legal and [non-legal measures](#) in achieving justice for individuals, groups and society

Analysis and use of sources

- Use and integrate a range of [evidence](#), including [legislation](#), cases, media, international instruments, documents, expert opinions and statistics
- Analyse evidence to identify and account for the different perspectives of individuals and groups in society
- Distinguish between fact and opinion

Interpretation

- Examine the nature of the relationship between law, justice and society
- Analyse the development of law as a reflection of society's values
- Form judgements about the effectiveness of legal and non-legal measures in achieving justice for individuals and society

Investigation and research

- Acknowledge sources appropriately
- Examine legal issues that illustrate how the law operates in practice

Evaluation

- Construct and develop reasoned arguments supported by relevant evidence
- Evaluate the responsiveness of the legal system to changing values, events, the media, outdated laws and developments in technology
- Evaluate the effectiveness of the law using criteria. These include:
 - [accessibility](#) of the law
 - achievement of justice
 - application of the [rule of law](#)
 - capacity to meet society's needs
 - capacity to uphold community standards
 - capacity to uphold the interests of justice
 - enforceability of [legal measures](#)
 - need for law [reform](#)
 - protection of individual rights
 - resource efficiency
 - responsiveness of the law

The criminal justice system (core)

Outcomes

A student:

- explains legal principles and judicial processes used in the legal system **LST-12-01**
- analyses the role, formation and reform of law **LST-12-03**
- analyses differing perspectives of individuals, groups and society in influencing the law **LST-12-04**
- assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-12-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-12-06**
- uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues **LST-12-07**
- uses a range of legal concepts to communicate information and legal reasoning to form a judgement **LST-12-08**

Related Life Skills outcomes: LAC-LS-02, LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-09, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The [Legal themes and skills content](#) is to be integrated as appropriate.

The nature of crime

- The changing nature and types of [crime](#) affecting individuals and society
- Factors affecting criminal behaviour
- The importance of situational and social crime prevention

Investigation

- The role of police in investigating crime, protecting the community and upholding the [rule of law](#)
- Police powers and responsibilities under the law in relation to arrests, searches, warrants, questioning and detention
- The role of police [discretion](#), including the use of warnings, cautions and fines
- The [recognition](#) of the rights of the accused, including the right to silence
- Support measures, including advocacy for the accused and assistance for victims

Pre-trial

- The roles and impact of [pre-trial processes](#) and decisions
- The bail process and its implications for the presumption of innocence
- The role of remand and its impact on the accused and society

Trial

- Reasons for and the operation of a criminal court hierarchy, including the appeal process
- The [adversarial system](#) and its implications for the achievement of justice
- The use of partial and complete defences to criminal charges
- Reasons for and against the use of juries and judge-alone trials
- The provision of legal aid to improve access to justice

- The impact of support services and advocacy to improve access to justice for [Aboriginal and Torres Strait Islander Peoples](#)

Sentencing

- The purposes of sentencing, including punishment, deterrence, protection and rehabilitation, and their roles in balancing the rights of victims, offenders and society
- Factors affecting a sentencing decision, including statutory and [judicial](#) sentencing guidelines, aggravating and mitigating factors, and the use of judicial discretion
- The role and consideration of victim impact statements
- Types of [custodial](#) and non-custodial penalties and the extent to which they achieve their intended outcomes
- Types of [diversionary](#) programs, including intervention, treatment and rehabilitation
- The role of and participation in Culturally appropriate options to improve outcomes for Aboriginal and Torres Strait Islander Peoples
- The impact of diversionary programs and alternative approaches to sentencing in diverting offenders and reducing [recidivism](#)

Post-sentencing

- The classification and placement of offenders in prison
- The purpose and conditions of parole
- The use of detention and supervision orders for high-risk offenders

International relations and human rights (core)

Outcomes

A student:

- explains legal principles and judicial processes used in the legal system **LST-12-01**
- analyses the key features of Australian and international law and the relationship between them **LST-12-02**
- analyses the role, formation and reform of law **LST-12-03**
- analyses differing perspectives of individuals, groups and society in influencing the law **LST-12-04**
- assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-12-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-12-06**
- uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues **LST-12-07**
- uses a range of legal concepts to communicate information and legal reasoning to form a judgement **LST-12-08**

Related Life Skills outcomes: LAC-LS-02, LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-09, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The [Legal themes and skills content](#) is to be integrated as appropriate.

The nature of international relations

- The origin and nature of [international relations](#)
- The need for international relations in the global community
- The changing nature of the global community and the impact of [state sovereignty](#)
- The contribution of international organisations in fostering relationships in the global community

The nature of human rights

- Characteristics of [human rights](#)
- The changing nature and developing [recognition](#) of human rights
- Categories of human rights, including civil and political rights, economic, social and cultural rights, the right to [self-determination](#), environmental rights and peace rights
- Foundational instruments for establishing human rights contained in the International Bill of Human Rights: the Universal Declaration of Human Rights, the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights
- The role of international human rights law in upholding the [obligations](#) of [nation-states](#) in emerging areas of human rights protection, including the United Nations Declaration on the Rights of [Indigenous](#) Peoples

International protection of human rights

- The role and limits of the United Nations in setting standards for human rights protection
- The obligations and duties of nation-states to protect human rights through international instruments
- Ways to monitor the protection and breaches of human rights

- Responses to breaches of human rights by international courts and [tribunals](#)
- ONE case study of a human right and the extent to which it is protected at an international level

Australian protection of human rights

- The process of incorporating international human rights instruments into domestic law
- Australia's [obligation](#) to protect human rights through the Australian Constitution, and statute and common law
- The function and importance of the Australian Human Rights Commission
- Responses to breaches of human rights by Australian courts and tribunals
- Debates over the need for a human rights framework in Australia
- ONE case study of a human right and the extent to which it is protected in Australia

Promotion of human rights

- Methods to promote human rights, including advocacy, education, persuasion and investigation
- The role of non-government organisations that promote and monitor breaches of human rights
- The role of organisations that support and advocate for [Aboriginal and Torres Strait Islander Peoples'](#) right to self-determination
- The role and limits of the media in promoting human rights
- ONE case study of a human right and the extent to which it is promoted by non-government organisations or the media

Options

The [Legal themes and skills content](#) is to be integrated as appropriate.

Students study TWO of the following options:

- Consumer law
- Family law
- Housing law
- Peace, conflict and the law
- Workplace law.

Consumer law (option)

Outcomes

A student:

- explains legal principles and judicial processes used in the legal system **LST-12-01**
- analyses the key features of Australian and international law and the relationship between them **LST-12-02**
- analyses the role, formation and reform of law **LST-12-03**
- assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-12-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-12-06**
- uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues **LST-12-07**
- uses a range of legal concepts to communicate information and legal reasoning to form a judgement **LST-12-08**

Related Life Skills outcomes: LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The nature of consumer law

- The evolving need for consumer protection, including international [recognition](#)
- Key consumer [legislation](#) and organisations in Australia, including protections around consumer rights and guarantees
- Rights and responsibilities of consumers
- [Contracts](#) as a key function of consumer protection against unfair business practices
- The roles of non-government organisations and the media in promoting consumer interests

Marketing and advertising

- The nature of marketing and advertising, including evolving methods for promoting products and services
- Statutory [regulation](#) of marketing and advertising in Australia
- Challenges in protecting consumers from unethical marketing practices and scams, including those driven by technology and global markets
- The [obligations](#) of businesses under the law to avoid unfair practices

Credit services

- The need for consumer protection relating to credit services
- The statutory regulation of credit services
- Challenges facing vulnerable consumers and the importance of advocacy and financial support agencies
- Responses to [non-compliance](#) through consumer credit laws, including enforcement measures

Industry standards and product safety

- The need for industry standards and product safety in a globalised market
- The regulation of industries and product safety in Australia, including mandatory and voluntary standards
- The impact of government and industry organisations in addressing [compliance](#) challenges
- Responses to non-compliance with industry standards and product safety, including enforcement measures

Competition in the marketplace

- The need for competition in the marketplace
- The regulation of competition in Australia
- Challenges for consumers due to [anti-competitive](#) behaviour, including limits on choice and price increases
- Responses to anti-competitive behaviour, including enforcement measures

Family law (option)

Outcomes

A student:

- explains legal principles and judicial processes used in the legal system **LST-12-01**
- analyses the key features of Australian and international law and the relationship between them **LST-12-02**
- analyses the role, formation and reform of law **LST-12-03**
- assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-12-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-12-06**
- uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues **LST-12-07**
- uses a range of legal concepts to communicate information and legal reasoning to form a judgement **LST-12-08**

Related Life Skills outcomes: LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The nature of family law

- The evolving concept of family in Australia
- Principles of the family law system
- The need to regulate family relationships and protect family members
- The responsibility of the state to protect families under international law
- The role and impact of non-government organisations and the media in promoting and supporting families

Family relationships

- Types of family structures, including the interconnections of kinship, Community and shared responsibilities for [Aboriginal and Torres Strait Islander Peoples](#)
- Statutory [regulation](#) of [de facto](#) relationships and marriages
- The requirements of a valid marriage
- Challenges in identifying and responding to forced marriages in Australia

Children

- The need for protection of the best interests of the child under domestic and international law
- Parental responsibility and the [obligations](#) of parents and guardians
- Legal requirements for foster care, Aboriginal and Torres Strait Islander [kinship](#) care and adoption
- Challenges in safeguarding children from harm, including child abuse and neglect

Conflict

- Statutory frameworks for separation and divorce
- The use of family dispute resolution and the role of the court in resolving conflict
- The use of parenting plans, court orders and child support to consider the best interests of a child during relationship breakdown

- The determination of property and financial matters to ensure equitable outcomes, including the role of informal and binding financial agreements

Protection

- The roles and powers of police and courts in promoting safety for family members
- Legal remedies, advocacy and support for victims of domestic and family violence
- Responses from government departments and the Children's Court to prioritise the safety and wellbeing of children
- Barriers to the protection of vulnerable individuals and groups from family violence and harm

Housing law (option)

Outcomes

A student:

- explains legal principles and judicial processes used in the legal system **LST-12-01**
- analyses the key features of Australian and international law and the relationship between them **LST-12-02**
- analyses the role, formation and reform of law **LST-12-03**
- assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-12-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-12-06**
- uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues **LST-12-07**
- uses a range of legal concepts to communicate information and legal reasoning to form a judgement **LST-12-08**

Related Life Skills outcomes: LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The nature of housing law

- The right to adequate housing under international law and the [obligation](#) to provide shelter in Australia
- Forms of real property ownership
- Types of property title, including the significance and [recognition](#) of [native title](#) to [Aboriginal and Torres Strait Islander People](#)
- The roles of non-government organisations and the media in supporting those seeking housing

Securing a home

- Legal processes for purchasing and selling property through private treaty and auctions, including the [contract](#) of sale
- The role of residential tenancy agreements in outlining the rights and responsibilities of landlords and tenants
- Barriers to buying property, including sources of finance and unfair practices
- Challenges faced in tenancy relationships, including security of tenure and discrimination

Conflict

- Types of residential property disputes
- The role of alternative dispute resolution in managing conflict for home owners, neighbours, tenants and landlords
- The role of courts and tribunals in resolving property disputes
- Challenges in the access of justice in property disputes, including complexity, cost and language barriers

Housing affordability

- The nature and extent of housing affordability and its impact on individuals, families and groups
- Challenges in securing housing, including financial barriers and supply

- The need for social housing, including public and community housing
- The importance of Culturally appropriate housing for Aboriginal and Torres Strait Islander Peoples
- Measures by state and federal governments to address housing affordability

Homelessness

- The causes, nature and extent of homelessness in NSW and Australia
- The impact of homelessness on the access to and enjoyment of [human rights](#)
- The role of housing for those with diverse needs and housing instability, including boarding homes and crisis and emergency accommodation
- Measures by state and federal governments to address the needs of individuals and groups experiencing homelessness

Peace, conflict and the law (option)

Outcomes

A student:

- explains legal principles and judicial processes used in the legal system **LST-12-01**
- analyses the key features of Australian and international law and the relationship between them **LST-12-02**
- analyses the role, formation and reform of law **LST-12-03**
- assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-12-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-12-06**
- uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues **LST-12-07**
- uses a range of legal concepts to communicate information and legal reasoning to form a judgement **LST-12-08**

Related Life Skills outcomes: LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The nature of peace and conflict

- The evolving need for peace at global, regional and national levels
- The [regulation](#) of a global society and the impact of [state sovereignty](#)
- Types and causes of global conflict
- The creation of international instruments to set global standards for [collective security](#)
- The roles and involvement of non-government organisations and the media in promoting peace and responding to conflict

Global cooperation

- The need to foster global cooperation and relationships through mutual aid and assistance
- [Obligations](#) of [nation-states](#) and [non-state actors](#) under international law
- The roles and involvement of the United Nations and [intergovernmental organisations](#) in maintaining relationships and promoting international cooperation
- Australia's participation as a global citizen to enhance collective security

War and conflict

- The changing nature of war
- The role of international humanitarian law in limiting the impact of armed conflict
- The actions of the United Nations in response to conflict
- The roles of courts and [ad hoc tribunals](#) in resolving conflict, and the use of [sanctions](#) to ensure the [compliance](#) of individuals and nation-states

Implications of conflict

- The impact of conflict on individuals, groups and nation-states
- Ways to address [displacement](#) as a result of conflict
- State sovereignty as a challenge in complying with obligations under international law
- The principle of Responsibility to Protect (R2P) as a framework to address conflict

Maintaining peace and security

- Measures to build and promote peace through [peacebuilding](#) activities and [peacekeeping](#) operations
- The use of [diplomacy](#) to foster and maintain relationships between nation-states
- The use of economic sanctions in response to conflict
- Responses from the international community to the threat of force by nation-states, including the elimination of weapons of mass destruction

Workplace law (option)

Outcomes

A student:

- explains legal principles and judicial processes used in the legal system **LST-12-01**
- analyses the key features of Australian and international law and the relationship between them **LST-12-02**
- analyses the role, formation and reform of law **LST-12-03**
- assesses methods to resolve conflict and encourage cooperation between individuals, groups and nation-states **LST-12-05**
- analyses legal issues to determine the extent to which the law achieves justice for individuals, groups and society **LST-12-06**
- uses and analyses a range of sources to evaluate the effectiveness of the law in addressing issues **LST-12-07**
- uses a range of legal concepts to communicate information and legal reasoning to form a judgement **LST-12-08**

Related Life Skills outcomes: LAC-LS-03, LAC-LS-04, LAC-LS-05, LAC-LS-06, LAC-LS-07, LAC-LS-08, LAC-LS-10, LAC-LS-11, LAC-LS-12

Content

The nature of workplace law

- The evolution of the labour market and the [recognition](#) of employee rights under international law
- Key workplace [legislation](#) and organisations in Australia
- The implications of employment status for employees, independent contractors and gig-economy workers
- The employment [contract](#) and minimum conditions of employment
- The roles of trade unions, non-government organisations and the media in advocating for workers' rights

Safety

- The need to maintain safe workplaces, including culturally responsive workplaces
- The [regulation](#) of safety requirements in the workplace
- Methods of enforcing employer responsibilities through government organisations and courts
- Challenges in protecting the safety of workers, including technological advancements and the inadequacy of regulation and penalties

Fair pay

- The need to protect fair pay in the workplace
- The regulatory framework for paid work in Australia
- Methods of enforcing fair pay through government organisations and courts
- Challenges facing vulnerable workers, including [exploitation](#), wage theft, unpaid work and unlawful deductions

Leave

- The evolving recognition of leave [entitlements](#) in the workplace
- Types of leave entitlement
- The regulatory framework for leave entitlements

- Measures to address a changing and diverse workforce without paid leave entitlements

Discrimination and termination

- The need to protect workers' rights regarding discrimination and termination
- Laws regulating unlawful workplace discrimination, unfair dismissal, unlawful termination and redundancy
- The roles of courts and tribunals in resolving disputes and imposing penalties, including alternative dispute resolution
- Barriers to participation in employment dispute resolution